

- (b) in the application of the said Act to the forces and ships of His Majesty's Navy not raised and provided by a self-governing dominion, to such modifications and adaptations as may be made by His Majesty in Council for the purpose of regulating the relations of the last-mentioned forces and ships to the forces and ships raised and provided by the self-governing dominions or any of them:

Provided that, where any forces and ships so raised and provided by a self-governing dominion have been placed at the disposal of the Admiralty, the said Act shall apply without any such modifications or adaptations as aforesaid.

(2) This Act shall not come into operation in relation to the forces or ships raised and provided by any self-governing dominion, unless or until provision to that effect has been made in the dominion.

(3) For the purposes of this Act, the expression "self-governing dominion" means the Dominion of Canada, the Commonwealth of Australia, the Dominion of New Zealand, the Union of South Africa, and Newfoundland.

Short title.

2. This Act may be cited as the Naval Discipline (Dominion Naval Forces) Act, 1911.

CHAPTER 48.

An Act to grant certain duties of Customs and Inland Revenue, to alter other duties, and to amend the Law relating to Customs and Inland Revenue (including Excise) and the National Debt, and to make other provisions for the financial arrangements of the year.

[16th December 1911.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards raising the necessary supplies to defray Your Majesty's public expenses, and making an addition to the public revenue, have freely and voluntarily resolved to give and grant unto Your Majesty the several duties herein-after mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

PART I.

CUSTOMS AND EXCISE.

1. The duty of Customs payable on tea until the first day of July nineteen hundred and eleven, under the Finance Act, 1910, shall be deemed to have been continued as from that date and shall continue to be charged, levied, and paid until the first day of July nineteen hundred and twelve, on the importation thereof into Great Britain or Ireland (that is to say):—

Tea, the pound - - - - fivepence.

Duty on tea.
10 Edw. 7.
& 1 Geo. 5.
c. 35.

2.—(1) The duty of Customs of twopence per pound on cocoa or chocolate ground, prepared, or in any way manufactured, imposed by section three of the Customs and Inland Revenue Act, 1879, shall cease; but nothing in this section shall affect the power to charge duty under section seven of the Finance Act, 1901.

Alterations
of cocoa duty.
42 & 43 Vict.
c. 21.
1 Edw. 7. c. 7.

(2) Drawback shall be allowed on the exportation or shipment for use as ships' stores of any goods in the manufacture or preparation of which in Great Britain or Ireland any cocoa, or cocoa butter, or cocoa husks and shells, has or have been used, equal to the duty in respect of the quantity of that cocoa, or cocoa butter, or cocoa husks and shells, as the case may be, which appears, to the satisfaction of the Treasury, to have been used in the manufacture or preparation of the goods; and, in allowing that drawback, the Commissioners of Customs and Excise may, with the assent of the Treasury, in order to facilitate trade, relax in the case of any goods any requirements of sections one hundred and four and one hundred and six of the Customs Consolidation Act, 1876, as to the giving of security and the examination of goods.

39 & 40 Vict.
c. 36.

3. Section nine of the Finance Act, 1900, shall apply in cases where goods or commodities subject to any duty of Customs or Excise are delivered out of a warehouse for removal under bond to be re-warehoused, and the duty is paid on the goods or commodities without their being re-warehoused, with the substitution of the date on which duty is paid for the date of the actual removal from the warehouse.

Provision as
to goods re-
moved to be
re-ware-
housed.
63 & 64 Vict.
c. 7.

4. The following definition shall be substituted, as from the first day of April nineteen hundred and eleven, for the definition of premises contained in section fifty-two of the Finance (1909–10) Act, 1910:—

Definition of
premises for
the purpose
of the
valuation of
licensed
premises.
10 Edw. 7. c. 8.

The expression "premises" in relation to the annual value of licensed premises includes any offices, courts, yards, and gardens which are occupied together with and are within the curtilage, or in the immediate vicinity, of the house or place where the liquor is sold, except any such offices, courts, yards, or gardens as are proved to the satisfaction of the Commissioners to be used either altogether, or with occasional exceptions only, for any trade or

business which is entirely distinct from the trade or business carried on in the house or place by the licence holder as such, and also includes any building or place which, though not within the curtilage, or in the immediate vicinity, of the house or place where the liquor is sold, is used by the licence holder for receiving or storing liquor, or which, in the opinion of the Commissioners, is used by him, otherwise than occasionally, for any purpose in connection with the sale of liquor.

Provision as to minimum duty not to apply to licensed premises situate in outlying parts of urban districts.

5. Where it is shown to the satisfaction of the Commissioners of Customs and Excise that any premises situated in an urban area are situated in a part of the area which has only a small local population and is essentially rural in character, and that the more populous parts of the district are so remote as not to affect the amount of business carried on upon the premises, the premises shall, for the purposes of Scale 3 in the First Schedule to the Finance (1909-10) Act, 1910 (which prescribes a minimum duty for publicans' and beerhouse licences), be deemed to be situate in an area which is not an urban area :

10 Edw. 7. &
1 Geo. 5. c. 24.

35 & 36 Vict.
c. 94.

Provided that any premises in respect of which an abatement of duty is allowed under this section, shall in England and Wales for the purposes of the Sixth Schedule to the Licensing (Consolidation) Act, 1910 (which prescribes general closing hours), be deemed to be premises situate not in a town or populous place ; and in Ireland for the purpose of section seventy-eight of the Licensing Act, 1872, to be premises not situate in a city or town.

Provision for payment of licence duty in two instalments.

6.—(1) Where the duty payable by any person under Part II. of the Finance (1909-10) Act, 1910, on any licence for the manufacture or sale of intoxicating liquor amounts to the sum of twenty pounds or upwards, the licence may, at the option of the licence holder, be granted upon payment of one-half only of the duty so payable, and in that case the other half of the duty shall be paid immediately after the expiration of six months from the commencement of the year for which the licence was granted, or, in case the licence is granted after the month of September, on the first day of February next ensuing, and, if default is made in payment of the second half of the duty, the licence shall be deemed to be of no effect so long as the default continues.

This provision shall apply to two or more licences granted in respect of one set of premises as it applies to a single licence.

(2) Any amount remaining unpaid in any case in respect of the second half of the duty may be recovered either as a debt due to the Crown or by distress on the licensed premises in the same manner as unpaid duty payable in respect of purchases of intoxicating liquor in a club may be recovered by distress on

the club premises, and subsection (3) of section forty-eight of the Finance (1909-10) Act, 1910, shall, so far as applicable, apply accordingly with the substitution of the licensed premises for the club, and of the holder of the licence for the secretary of the club.

(3) The power of recovering the second half of duty under this section shall apply to the recovery of the unpaid portion of duty in cases where a licence for the manufacture or sale of intoxicating liquor has been granted before the passing of this Act on payment of a portion of the duty only, except that in cases where the licence has been so granted under subsection (3) of section forty-nine of the Finance (1909-10) Act, 1910, and is now in force, the first day of March next after the commencement of the year for which the licence was granted shall be substituted for the first day of February next ensuing.

7. Where an Excise licence ceases to be in force owing to the fact that the justices' licence or certificate in pursuance of which it was granted has expired and has not been renewed, there shall be repaid to the holder of the Excise licence such sum as bears to the full amount of the duty the same proportion as the unexpired period of the licence bears to a whole year, unless there has been such a conviction against the licence holder as is mentioned in section twenty-two of the Excise Licences Act, 1825.

Repayment of proportional part of duty where justices' licence expires before Excise licence.

6 Geo. 4. c. 81.

8. In the case of licences for the sale of intoxicating liquor granted to a new beginner, the proportional part of the duty upon payment of which the licence may be granted shall be such sum as bears to the full amount of the duty the same proportion as the period for which the licence will be in force bears to a whole year.

Licences for new beginners.

9.—(1) Any manufacturing or wholesale chemist and druggist who requires a licence for the purposes only of selling rectified spirits of not less than forty-three degrees above proof, for medicinal purposes, to duly qualified medical practitioners or duly registered pharmaceutical chemists or chemists and druggists, or persons requiring the spirits for use for scientific purposes in any laboratory, and undertakes not to sell spirits otherwise than for those purposes and to those persons, may obtain a licence on payment of a reduced duty of ten pounds.

Licences for sale of spirits for medical purposes, &c.

(2) The Commissioners of Customs and Excise may attach such conditions to any licence granted on payment of a reduced duty under this section as they think expedient for the protection of the revenue.

(3) If any person holding a licence granted on payment of a reduced duty under this section sells spirits in any manner contrary to his undertaking, or to the conditions attached to his licence, he shall be liable in respect of each offence to an Excise penalty of fifty pounds.

Restrictions
on the use of
British wines
for blending
purposes.

10. The Commissioners of Customs and Excise may make regulations prohibiting or restricting the mixture for sale of any British wines with any foreign wine or with any description of spirits, or the sale or exposure for sale of any such mixture, and requiring every manufacturer for sale of British wines to enter in the book obtained by him from the officer of Customs and Excise such particulars as may be prescribed by them in reference to all British wines made and sent out by him, and, if any person acts in contravention or fails to comply with any of these regulations, the article in respect of which the offence is committed shall be forfeited, and the person committing the offence shall be liable in respect of each offence to an Excise penalty of fifty pounds.

Exemption of
motor cars used
for fire brigade
purposes from
duty on licences
for motor cars.

11. Subsection (6) of section eighty-six of the Finance (1909-10) Act, 1910, shall be construed as if the words "or any motor car used by any local authority for fire brigade purposes" were added at the end thereof.

Exemption
for motor fire
engines, &c.,
in respect of
the duty on
motor spirit.

12. Any local authority using motor spirit for the purpose of supplying motive power to any motor fire engine provided by them, or to any motor car kept by them while it is being used by them for the purposes of their fire brigade service, shall be entitled to an allowance or repayment of the duty paid in respect of the motor spirit in the same manner as persons using motor spirit for purposes other than the supply of motive power for motor cars.

PART II.

STAMPS.

Reduction of
duty on cer-
tain market-
able securities.

13.—(1) The stamp duty charged on marketable securities transferable by delivery (not being Colonial Government securities) shall, when the amount secured by the security is to be paid off within a term not exceeding three years after the date on which the duty is payable and the date by which the amount is to be paid off is conspicuously stated on the face of the security, be reduced to threepence for every ten pounds or fractional part of ten pounds of the money secured, if that money is to be paid off within a term not exceeding one year from the date on which the duty is payable, and sixpence for every ten pounds or fractional part of ten pounds of the money secured, if that money is to be paid off within a term exceeding one year but not exceeding three years from the date on which the duty is payable.

(2) If any marketable security on which stamp duty has been charged in accordance with this section is assigned, transferred, or in any manner negotiated in the United Kingdom after the date stated on the face of the security as the date by which the amount secured is to be paid off, stamp duty shall be

charged thereon at the full rate of duty, an allowance being made for the duty already paid, and, if any person in the United Kingdom after the said date assigns, transfers, or in any manner negotiates, or is concerned as broker or agent in assigning, transferring, or in any manner negotiating any such security and the security is not stamped in accordance with this provision, that person shall incur a fine of twenty pounds.

(3) Paragraph (4) under the heading *MARKETABLE SECURITY* in the First Schedule to the Stamp Act, 1891 (which provides a reduced duty in the case of marketable securities given in substitution for like securities duly stamped) shall not apply in the case of marketable securities given in substitution for marketable securities which have been stamped only with the reduced duty under this section. 54 & 55 Vict. c. 39.

PART III.

INCOME TAX AND INHABITED HOUSE DUTY.

14.—(1) Income tax for the year beginning on the sixth day of April nineteen hundred and eleven shall be charged at the rate of one shilling and twopence, and the same super-tax shall be charged, levied, and paid for that year as was charged for the year beginning on the sixth day of April nineteen hundred and ten. Income tax for 1911-12.

(2) All such enactments relating to income tax (including super-tax) as were in force with respect to duties of income tax granted for the year beginning on the sixth day of April nineteen hundred and ten shall have full force and effect with respect to any duties of income tax hereby granted.

(3) The annual value of any property which has been adopted for the purpose either of income tax under Schedules A. and B. in the Income Tax Act, 1853, or of inhabited house duty, during the year ending on the fifth day of April nineteen hundred and eleven, shall be taken as the annual value of such property for the same purpose during the next subsequent year; provided that this subsection— 16 & 17 Vict. c. 34.

(a) so far as respects the duty on inhabited houses in Scotland, shall be construed with the substitution of the twenty-fourth day of May for the fifth day of April; and

(b) shall not apply to the metropolis as defined by the Valuation (Metropolis) Act, 1869. 32 & 33 Vict. c. 67.

15. The fact that the husband or wife of a caretaker, or other member of the family of a caretaker, or the servant of a caretaker, dwells in any house or tenement together with the caretaker shall not be of itself sufficient to deprive the house or Inhabited house duty in case of premises in hands of caretakers.

tenement of the benefit of any exemption under Schedule B, 48 Geo. 3. c. 55. case 5, of the House Tax Act, 1808, or subsection (2) of section 41 & 42 Vict. thirteen of the Customs and Inland Revenue Act, 1878. c. 15.

PART IV.

NATIONAL DEBT.

Partial appli-
cation of sur-
plus for de-
velopment
fund and
sanatoria and
loan to East
Africa Pro-
tectorate.

38 & 39 Vict.
c. 45.

9 Edw. 7. c. 47.

16.—(1) The old sinking fund for the financial year ending the thirty-first day of March nineteen hundred and eleven, as calculated under section nineteen of the Revenue Act, 1911, shall, notwithstanding anything in the Sinking Fund Act, 1875—

(a) to the extent of one million five hundred thousand pounds, be issued and paid by the Treasury at such times as they direct to the development fund under the Development and Road Improvement Funds Act, 1909, in lieu of the sums to be issued out of the consolidated fund under subsection (2) of section two of that Act in the years ending the thirty-first day of March nineteen hundred and thirteen, nineteen hundred and fourteen, and nineteen hundred and fifteen respectively ; and

(b) to the extent of one million five hundred thousand pounds, be issued by the Treasury at such times as they direct, and carried by the Treasury to a separate account, and made available in such manner as Parliament may determine for the purposes of the provision of, or making grants in aid to, sanatoria and other institutions for the treatment of tuberculosis, or such other diseases as the Local Government Board, or as respects Scotland the Local Government Board for Scotland, or as respects Ireland the Local Government Board for Ireland, with the approval of the Treasury, may appoint ; and

(c) to the extent of two hundred and fifty thousand pounds, shall be issued by the Treasury at such times as they may direct for the purpose of the advance authorised by this Act to the Government of the East Africa Protectorate.

(2) The Treasury may advance by way of loan to the Government of the East Africa Protectorate for the purpose of providing improved railway communication and harbours in the Protectorate, and improved water supply for Mombasa any sums not exceeding in the whole two hundred and fifty thousand pounds.

The Government of the Protectorate shall annually, until the whole advance is deemed to have been repaid, pay to the Treasury interest at the rate of three and a half per cent. on the amount advanced, and also, by way of sinking fund, a

further sum equal to one per cent. on the amount advanced, and the whole of the advance shall be deemed to have been repaid when sinking fund payments have been made sufficient, if accumulated at three and a half per cent. with yearly rests, to produce an amount equal to the advance.

Any sums paid on account of the principal or interest of the advance shall be paid into the Exchequer, and issued to the National Debt Commissioners, and shall be applied by them in like manner as the old sinking fund.

17.—(1) Notwithstanding anything in section twenty-two of the National Debt Act, 1870, any stock belonging to a stockholder shall, if registered for the time being as stock transferable by deed in manner provided by regulations made under this section, be transferable by deed instead of in the manner provided by that section.

Transfer of
Government
stock by deed.
33 & 34 Vict.
c. 71.

The Banks of England and Ireland respectively, with the concurrence of the Treasury, shall provide by regulations for a separate stock register being kept for stock which is for the time being transferable by deed, for the conditions upon which stock is to be entered in or removed from that register, for the mode in which the transfer by deed is to be carried out, and for the payment of any fees in respect of the entry or removal of stock from the register and the carrying out of any transfer of stock by deed.

The provisions of the National Debt Act, 1870, and any Act amending the same, shall apply to stock transferable by deed in pursuance of this section as they apply to stock transferable in the books of the Banks of England or Ireland, except so far as express provision is made to the contrary by this section or by the regulations made thereunder.

(2) No stamp duty shall be payable in respect of any deed of transfer of the stock.

(3) In this section the expression "stock" means any stock which is for the time being transferable in the books of the Banks of England and Ireland under the National Debt Act, 1870.

PART V.

DEATH DUTIES.

18. It is hereby declared that, in estimating for the purposes of subsection (5) of section seven of the Finance Act, 1894, the principal value of any agricultural property which comprises cottages occupied by persons employed solely for agricultural purposes in connexion with the property, no account shall be taken of any value attributable to the fact that the cottage is suitable for the residential purposes of any persons other than agricultural labourers or workmen on the estate.

Valuation of
cottages for
purposes of
Estate Duty.
57 & 58 Vict.
c. 30.

Amendment
of 10 Edw. 7.
c. 8. s. 61 (5).

19. Subsection (5) of section sixty-one of the Finance (1909-10) Act, 1910 (which relates to duty in respect of timber, trees, or wood), shall have effect and shall be deemed always to have had effect as if the words "on or after the thirtieth day of April nineteen hundred and nine" were substituted for the words "after the passing of this Act."

PART VI.

GENERAL.

Provision for
enabling the
Post Office to
exercise
powers in
relation to
stamps, &c.

20. His Majesty may, by Order in Council, provide that any powers and duties of the Commissioners of Inland Revenue, whether statutory or otherwise, with reference to any stamps used to denote duties of postage, or any stamps used to denote other duties, being either adhesive stamps or stamps which are usually sold or distributed at a post office, or with reference to any postal orders, licences, or forms usually so sold or distributed shall be exercised and performed by the Postmaster-General, either to the exclusion of the Commissioners of Inland Revenue or concurrently with those Commissioners, and any such order shall have effect as if enacted in this Act.

Such provisions may be made by the order as appear necessary or expedient to give full effect to the exercise and performance of the powers and duties to which the order relates in manner provided by the order.

Amendment
of schedule to
Revenue Act,
1911.
1 Geo. 5. c. 2.

21. The Revenue Act, 1911, shall be read as if section ninety-one of the Finance (1909-10) Act, 1910, were not included in the schedule of enactments repealed.

Repeal, con-
struction, and
short title.

22.—(1) The enactments mentioned in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

39 & 40 Vict.
c. 36.

(2) Part I. of this Act, so far as it relates to duties of Customs, shall be construed together with the Customs Consolidation Act, 1876, and the Acts amending that Act, and so far as it relates to duties of Excise shall be construed together with the Acts which relate to duties of Excise and the management of those duties.

Part II. of this Act shall be construed together with the Stamp Act, 1891.

5 & 6 Vict.
c. 35.
16 & 17 Vict.
c. 34.

Part III. of this Act shall be construed together with the Income Tax Acts, 1842 and 1853, and any other enactments relating to income tax.

(3) This Act may be cited as the Finance Act, 1911.

SCHEDULE.

ENACTMENTS REPEALED.

Section 22.

Session and Chapter.	Short Title.	Extent of Repeal.
6 Geo. 4. c. 81.	The Excise Licences Act, 1825.	Section twenty-four.
42 & 43 Vict. c. 21.	The Customs and Inland Revenue Act, 1879.	Section three.
9 Edw. 7. c. 47.	The Development and Road Improvement Funds Act, 1909.	Subsection (2) of section two, as from the thirty-first day of March nineteen hundred and twelve.
10 Edw. 7. c. 8.	The Finance (1909-10) Act, 1910.	Subsection (3) of section forty-nine and in section fifty-two the definition of "premises."

CHAPTER 49.

An Act to encourage the formation of Small Agricultural Holdings in Scotland, and to amend the Law relating to the Tenure of such Holdings (including Crofters' Holdings); to establish a Board of Agriculture for Scotland; and for other purposes connected therewith.

[16th December 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. From and after the commencement of this Act, and subject to the provisions thereof, the Crofters Acts shall be read and construed as if the expression "landholder" were substituted for the expression "crofter" occurring therein, and shall have effect throughout Scotland.

Crofters
Acts applied
throughout
Scotland.

2.—(1) In the Crofters Acts and this Act (herein-after referred to collectively as the Landholders Acts) the word "holding" means and includes—

Who to be
landholders.

- (i) As from the commencement of this Act, every holding which at the commencement of this Act is held by a crofter to whom in respect of such holding the Act of 1886 applies (herein-after referred to as an existing crofter);
- (ii) As from the commencement of this Act, and subject as herein-after provided, every holding which at the